

CHAPTER 1
PRELIMINARY PROVISIONS

Section 101. Short title.

This act shall be known and may be cited as the Crime Victims Act.

Section 102. Legislative intent.

The General Assembly finds and declares as follows:

(1) In recognition of the civic and moral duty of victims of crime to fully and voluntarily cooperate with law enforcement and prosecutorial agencies and in further recognition of the continuing importance of victim cooperation to State and local law enforcement efforts and the general effectiveness and well-being of the criminal justice system of this Commonwealth, all victims of crime are to be treated with dignity, respect, courtesy and sensitivity.

(2) The rights extended to victims of crime in Chapter 2 are to be honored and protected by law enforcement agencies, prosecutors and judges in a manner no less vigorous than the protections afforded criminal defendants.

Section 103. Definitions.

The following words and phrases when used in this act shall have the meanings given to them in this section unless the context clearly indicates otherwise:

"Adult." Any of the following:

(1) An individual charged with a crime who is 18 years of age or older.

(2) An individual who is subject to criminal court jurisdiction following the transfer of a case to criminal proceedings.

(3) An individual who is subject to criminal court jurisdiction after having been charged with a crime excluded from the definition of "delinquent act" pursuant to 42 Pa.C.S. § 6302 "delinquent act" (2)(i), (ii), (iii) or (v) (relating to definitions).

"Board." The Pennsylvania Parole Board. (Def. amended July 11, 2022, P.L.775, No.77)

"Campus police." As defined in section 302 of the act of November 29, 2004 (P.L.1383, No.180), known as the Uniform Crime Reporting Act. (Def. added July 11, 2022, P.L.775, No.77)

"Claimant." The person filing a claim under Chapter 7.

"Commission." The Pennsylvania Commission on Crime and Delinquency.

"Committee." The Victims' Services Advisory Committee established in section 321.

"Counseling services." A mental health therapy performed by or under the supervision of a mental health care provider. (Def. added July 11, 2022, P.L.775, No.77)

"Crime." An act which was committed:

(1) In this Commonwealth by a person, including a juvenile, without regard to legal exemption or defense which would constitute a crime under the following:

(i) The act of April 14, 1972 (P.L.233, No.64), known as The Controlled Substance, Drug, Device and Cosmetic Act.

(ii) 18 Pa.C.S. (relating to crimes and offenses).
30 Pa.C.S. § 5502 (relating to operating watercraft under influence of alcohol or controlled substance).

30 Pa.C.S. § 5502.1 (relating to homicide by watercraft while operating under influence).

30 Pa.C.S. § 5502.2 (relating to homicide by watercraft).

30 Pa.C.S. § 5502.3 (relating to aggravated assault by watercraft while operating under influence).

30 Pa.C.S. § 5502.4 (relating to aggravated assault by watercraft).

The former 75 Pa.C.S. § 3731 (relating to driving under influence of alcohol or controlled substance).

75 Pa.C.S. § 3732 (relating to homicide by vehicle).

75 Pa.C.S. § 3732.1 (relating to aggravated assault by vehicle).

75 Pa.C.S. § 3733 (relating to fleeing or attempting to elude police officer).

75 Pa.C.S. § 3734 (relating to driving without lights to avoid identification or arrest).

75 Pa.C.S. § 3735 (relating to homicide by vehicle while driving under influence).

75 Pa.C.S. § 3735.1 (relating to aggravated assault by vehicle while driving under the influence).

75 Pa.C.S. § 3742 (relating to accidents involving death or personal injury).

75 Pa.C.S. § 3742.1 (relating to accidents involving death or personal injury while not properly licensed) if the nature and circumstances of the offense committed are substantially similar to an offense under 75 Pa.C.S. § 3742.

75 Pa.C.S. Ch. 38 (relating to driving after imbibing alcohol or utilizing drugs).

(iii) The laws of the United States.

(2) Against a resident of this Commonwealth which would be a crime under paragraph (1) but for its occurrence in a location other than this Commonwealth.

(3) Against a resident of this Commonwealth which is an act of international terrorism.

(Def. amended July 11, 2022, P.L.775, No.77)

"Department." The Department of Corrections of the Commonwealth.

"Direct victim." An individual against whom a crime has been committed or attempted and who as a direct result of the criminal act or attempt suffers physical or mental injury, death or the loss of earnings under this act. The term shall not include the alleged offender. The term includes a resident of this Commonwealth against whom an act has been committed or attempted which otherwise would constitute a crime as defined in this act but for its occurrence in a location other than this Commonwealth and for which the individual would otherwise be compensated by the crime victim compensation program of the location where the act occurred but for the ineligibility of such program under the provisions of the Victims of Crime Act of 1984 (Public Law 98-473, 42 U.S.C. § 10601 et seq.).

"Dispositional proceeding." A proceeding which occurs in open common pleas court which potentially could dispose of the case. The term includes Accelerated Rehabilitative Disposition, pleas, trial and sentence.

"Diversionary program." A program which is used to divert the defendant to an alternative form of disposition under the Pennsylvania Rules of Criminal Procedure or statutory authority.

The term includes dispositions authorized by Rules 160, 176 and 314 of the Pennsylvania Rules of Criminal Procedure and sections 17 and 18 of the act of April 14, 1972 (P.L.233, No.64), known as The Controlled Substance, Drug, Device and Cosmetic Act.

"Family." When used in reference to an individual:

(1) anyone related to that individual within the third degree of consanguinity or affinity;

(2) anyone maintaining a common-law relationship with that individual; or

(3) anyone residing in the same household with that individual.

"Financial support." Includes the loss of court-ordered child or spousal support payments if the victim is deprived of money as a direct result of a crime. (Def. added July 11, 2022, P.L.775, No.77)

"Injury." Includes physical or mental damages incurred as a direct result of the crime and aggravation of existing injuries if additional losses can be attributed to the direct result of the crime.

"International terrorism." Activities which meet all of the following:

(1) Involve violent acts or acts dangerous to human life that are a violation of the criminal laws of the United States or of any state or that would be a criminal violation if committed within the jurisdiction of the United States or of any state.

(2) Appear to be intended:

(i) to intimidate or coerce a civilian population;

(ii) to influence the policy of a government by intimidation or coercion; or

(iii) to affect the conduct of a government by assassination or kidnapping.

(3) Occur primarily outside of the territorial jurisdiction of the United States or transcend national boundaries in terms of the means by which they are accomplished, the persons they appear intended to intimidate or coerce or the locale in which their perpetrators operate or seek asylum.

"Intervenor." An individual, including a law enforcement officer who is injured in the performance of the individual's duties, who goes to the aid of another and suffers physical or mental injury or death as a direct result of acting not recklessly to prevent the commission of a crime, to lawfully apprehend a person reasonably suspected of having committed such crime or to aid the victim of such crime. (Def. amended July 11, 2022, P.L.775, No.77)

"Juvenile." An individual who is alleged or has been determined to be a "delinquent child" as defined in 42 Pa.C.S. § 6302 (relating to definitions).

"Law enforcement agency." The Pennsylvania State Police and a local law enforcement agency.

"Law enforcement officer." A peace officer as defined in 18 Pa.C.S. § 501 (relating to definitions). (Def. added July 11, 2022, P.L.775, No.77)

"Local correctional facility." A jail, prison or detention facility operated by a county or jointly by more than one county and used for the confinement of individuals for safe custody. The term does not include any facility used for the detention or confinement of juveniles.

"Local law enforcement agency." A police department of a city, borough, incorporated town or township or campus police. (Def. amended July 11, 2022, P.L.775, No.77)

"Loss of earnings." An economic loss resulting from an injury or death to a victim of a crime or an intervenor that has not been and will not be reimbursed from any other source. The term includes the loss of the cash equivalent of one month's worth of Social Security, railroad retirement, pension plan, retirement plan, disability, veteran's retirement, loss of support payments if the payments are the primary source of the victim's income or other similar benefit, and the victim or intervenor is deprived of money as a direct result of a crime. (Def. amended July 11, 2022, P.L.775, No.77)

"Loss of support." The loss of verifiable financial support the direct victim would have contributed to surviving dependents that is lost due to the death of the direct victim as a direct result of a crime. (Def. added July 11, 2022, P.L.775, No.77)

"Mental health care provider." Any of the following:

(1) A psychiatrist.

(2) An individual licensed under the act of March 23, 1972 (P.L.136, No.52), known as the Professional Psychologists Practice Act.

(3) A licensed professional counselor as defined in section 3 of the act of July 9, 1987 (P.L.220, No.39), known as the Social Workers, Marriage and Family Therapists and Professional Counselors Act.

(4) A licensed social worker as defined in section 3 of the Social Workers, Marriage and Family Therapists and Professional Counselors Act.

(Def. added July 11, 2022, P.L.775, No.77)

"Office." The Office of Victim Advocate established in section 302.

"Office of Victims' Services." The Office of Victims' Services in the Pennsylvania Commission on Crime and Delinquency.

"Out-of-pocket loss." The term includes the following losses which shall be reimbursed at a rate set by the Office of Victims' Services:

(1) expenses for unreimbursed and unreimbursable expenses or indebtedness incurred for medical care, nonmedical remedial care and treatment as approved by the Office of Victims' Services or other services;

(2) expenses for counseling, prosthetic devices, wheelchairs, canes, walkers, hearing aids, eyeglasses or other corrective lenses or dental devices reasonably necessary as a result of the crime upon which the claim is based and for which the claimant either has paid or is liable;

(3) expenses related to the reasonable and necessary costs of cleaning the crime scene of a private residence or privately owned motor vehicle. "Cleaning" means to remove or attempt to remove stains or blood caused by the crime or other dirt or debris caused by the processing of the crime scene;

(4) expenses resulting from the temporary or permanent relocation of a direct victim and individuals residing in the household of the direct victim due to the incident forming the basis of the victim's claim when there is an immediate need to protect the safety and health of the victim and individuals residing in the household, as verified by a medical provider, human services provider or law enforcement;

(5) expenses for physical examinations and materials used to obtain evidence; or

(6) other reasonable expenses which are deemed necessary as a direct result of the criminal incident.

Except as otherwise provided, the term does not include property damage or pain and suffering.

(Def. amended July 11, 2022, P.L.775, No.77)

"Personal injury crime." An act, attempt, solicitation or conspiracy to commit an act which would constitute a misdemeanor or felony under the following:

- 18 Pa.C.S. Ch. 25 (relating to criminal homicide).
- 18 Pa.C.S. Ch. 27 (relating to assault).
- 18 Pa.C.S. § 2803 (relating to aggravated hazing).
- 18 Pa.C.S. Ch. 29 (relating to kidnapping).
- 18 Pa.C.S. Ch. 30 (relating to human trafficking).
- 18 Pa.C.S. Ch. 31 (relating to sexual offenses).
- 18 Pa.C.S. § 3301 (relating to arson and related offenses).
- 18 Pa.C.S. Ch. 37 (relating to robbery).
- 18 Pa.C.S. Ch. 49 Subch. B (relating to victim and witness intimidation).
- 18 Pa.C.S. § 6312 (relating to sexual abuse of children).
- 18 Pa.C.S. § 6318 (relating to unlawful contact with minor).
- 18 Pa.C.S. § 6320 (relating to sexual exploitation of children).
- 30 Pa.C.S. § 5502.1 (relating to homicide by watercraft while operating under influence).
- 30 Pa.C.S. § 5502.2 (relating to homicide by watercraft).
- 30 Pa.C.S. § 5502.3 (relating to aggravated assault by watercraft while operating under influence).
- 30 Pa.C.S. § 5502.4 (relating to aggravated assault by watercraft).

The former 75 Pa.C.S. § 3731 (relating to driving under influence of alcohol or controlled substance) in cases involving bodily injury.

75 Pa.C.S. § 3732 (relating to homicide by vehicle).

75 Pa.C.S. § 3732.1 (relating to aggravated assault by vehicle).

75 Pa.C.S. § 3735 (relating to homicide by vehicle while driving under influence).

75 Pa.C.S. § 3735.1 (relating to aggravated assault by vehicle while driving under the influence).

75 Pa.C.S. Ch. 38 (relating to driving after imbibing alcohol or utilizing drugs) in cases involving bodily injury. The term includes violations of any protective order issued under 23 Pa.C.S. Ch. 61 (relating to protection from abuse) or 42 Pa.C.S. Ch. 62A (relating to protection of victims of sexual violence or intimidation) or a similar protective order issued outside this Commonwealth. The term includes a crime of violence as defined in 42 Pa.C.S. § 9714(g) (relating to sentences for second and subsequent offenses).

(Def. amended July 11, 2022, P.L.775, No.77)

"Personal injury rights crime." A personal injury crime or an act, attempt, solicitation or conspiracy to commit an act which would constitute a misdemeanor or felony under the following:

18 Pa.C.S. § 2802 (relating to hazing), if graded as a misdemeanor of the third degree.

18 Pa.C.S. § 5131 (relating to recruiting criminal gang members).

75 Pa.C.S. § 3733 (relating to fleeing or attempting to elude police officer).

75 Pa.C.S. § 3734 (relating to driving without lights to avoid identification or arrest).

75 Pa.C.S. § 3742 (relating to accidents involving death or personal injury).

75 Pa.C.S. § 3742.1 (relating to accidents involving death or personal injury while not properly licensed) if the nature and circumstance of the offense committed are substantially similar to an offense under 75 Pa.C.S. § 3742. (Def. added July 11, 2022, P.L.775, No.77)

"Preadjudication disposition." Any of the following:

(1) Disposition of an adult without a trial. This paragraph includes accelerated rehabilitative disposition.

(2) Disposition of a juvenile prior to an adjudication of delinquency under 42 Pa.C.S. Ch. 63 (relating to juvenile matters), including informal adjustment as set forth in 42 Pa.C.S. § 6323 (relating to informal adjustment), and consent decree as set forth in 42 Pa.C.S. § 6340 (relating to consent decree).

"Prosecutor's office." The Office of Attorney General or the office of a district attorney of a county.

"Sexual abuse." Conduct which occurs in this Commonwealth and would constitute an offense under any of the following provisions of 18 Pa.C.S. (relating to crimes and offenses):

Section 3011(a)(1) or (2) and (b) (relating to trafficking in individuals).

Section 3012 (relating to involuntary servitude) as it relates to sexual servitude.

Section 3121 (relating to rape).

Section 3122.1 (relating to statutory sexual assault).

Section 3123 (relating to involuntary deviate sexual intercourse).

Section 3124.1 (relating to sexual assault).

Section 3124.2 (relating to institutional sexual assault).

Section 3125 (relating to aggravated indecent assault).

Section 3126 (relating to indecent assault).

Section 3127 (relating to indecent exposure).

Section 3133 (relating to sexual extortion),

Section 4302 (relating to incest).

Section 6312 (relating to sexual abuse of children).

Section 6320 (relating to sexual exploitation of children).

(Def. added July 11, 2022, P.L.775, No.77)

"Victim." The term means the following:

(1) A direct victim.

(2) A parent or legal guardian of a child who is a direct victim, except when the parent or legal guardian of the child is the alleged offender.

(3) A minor child who is a material witness to any of the following crimes and offenses under 18 Pa.C.S. (relating to crimes and offenses) committed or attempted against a member of the child's family:

Chapter 25 (relating to criminal homicide).

Section 2702 (relating to aggravated assault).

Section 3121 (relating to rape).

(4) A family member of a homicide victim, including stepbrothers or stepsisters, stepchildren, stepparents or a fiancée, one of whom is to be identified to receive communication as provided for in this act, except where the family member is the alleged offender.

"Victim advocate." The victim advocate in the Office of Victim Advocate within the department. (Def. amended July 11, 2022, P.L.775, No.77)

(103 amended June 28, 2002, P.L.496, No.85)

Compiler's Note: Section 16 of Act 77 of 2022 provided that the amendment or addition of sections 103, 201(1.1), (4), (5.2), (7), (8), (8.1), (9), (11) and (13), 211, 212(b), (c), (e) and (f), 213(a), (b), (d), (e), (f) and (g), 214(a), (b) and (f), 216(b) and (d), 301(a) and (c), 302(5), (6) and (7), 312(3), 701(a)(7) and (8), 701.1, 702(a) introductory paragraph, (b), (b.1) and (c), 703, 704(b)(1) and (e), 706(a)(1) and (b), 707(a)(3) and (4), (a.1), (a.2), (b)(1), (2), (4) and (4.1), (f)(1), (3) and (4) and (g), 709(a), 901, 1101(b), 1102(a), (b), (c), (d) and (e)(1), 1301(b) and 1304(a) and (b) shall apply to claims where the crime occurred after the effective date of section 16, except for claims for counseling services relating to sexual abuse under section 701.1.